

25NWLC58340 25NWLC58340

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC58340 Hearing Date: August 20, 2026 Dept: Y

25NWLC58340: LVNV FUNDING LLC AS SUCCESSOR IN INTEREST TO CREDIT ONE BANK, N.A. vs RICHARD ESPINAL

Tentative Ruling:

The Court has read and considered the moving papers filed by Defendant Richard Espinal ("Defendant"), the opposing papers filed by Plaintiff LVNV Funding, LLC ("Plaintiff"), and Defendant's reply. The Court takes judicial notice of the Complaint filed on October 3, 2025 and the attached Credit One Bank Card Agreement ("Agreement").

The Court notes that Defendant has elected to resolve Plaintiff's claims by binding arbitration and has sought such relief by this motion pursuant to the terms of the Agreement, which designates the American Arbitration Association ("AAA") as the forum for arbitration.

Under Code of Civil Procedure section 1281.2, a court shall order arbitration if it determines that an agreement to arbitrate exists and that a party to the agreement refuses to arbitrate. Plaintiff's opposition to Defendant's motion to compel arbitration constitutes a refusal to arbitrate within the meaning of the statute. Plaintiff's contention that Defendant failed to establish the existence of an agreement to arbitrate is not well taken, as the Agreement is attached to the Complaint and is the same Agreement Plaintiff seeks to enforce. Once arbitration is compelled, the Court must stay the action pending the outcome of the arbitration pursuant to Code of Civil Procedure section 1281.4.

Accordingly, pursuant to Code of Civil Procedure sections 1281.2 and 1281.4, Defendant's Motion to Compel Arbitration and Stay Proceedings is GRANTED. The proceedings will be stayed for approximately 120 days pending arbitration with AAA as set forth in the Agreement.

The Court advances and vacates the current trial date of October 9, 2026. The Court also sets a Status Conference Re: Arbitration on March 3, 2027 at 8:30 a.m. in Department Y. If the parties have not initiated Arbitration by the date of the Status Conference Re: Arbitration, the Court will reset the trial date at the request of either party and find that the right to arbitrate has been waived.

Plaintiff to give notice.